

8	25-01452596 <i>Joseph Construction vs. Kenney</i>	Motion for Summary Judgment and/or Adjudication OFF CALENDAR
9	22-01292736 <i>Martin vs. The Stag Bar, Inc.</i>	Motion to Compel Production Defendant The Stag Bar, Inc.’s Motion to Compel Compliance or Terminating Sanctions is GRANTED in part as to the request for terminating sanctions. Terminating sanctions are appropriate when the “violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules.” (<i>Mileikowsky v. Tenet Healthsystem</i> (2005) 128 Cal.App.4th 262, 279.) “[A]bsent unusual circumstances, such as repeated and egregious discovery abuses, two facts are generally prerequisite to the imposition of a nonmonetary sanction. There must be a failure to comply with a court order and the failure must be willful.” (<i>Lee v. Lee</i> (2009) 175 Cal.App.4th 1553, 1559.) “A trial court has broad discretion when imposing a discovery sanction.” (<i>Ibid.</i>) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) Plaintiff was ordered to provide responses to Defendant’s Requests for Production, set two, on January 22, 2026 within 20 days and without objections. Plaintiff served responses with objections and without producing any documents on February 19, 2026. (Deng Decl., Ex. C.) Thus, her responses were late, failed to comply with the Court’s order, and importantly failed to attach the responsive documents. Defendant has contacted Plaintiff numerous times to request the responsive documents and Plaintiff has repeatedly failed to produce them despite promising to do so for over four months. Further, Plaintiff failed to comply with the required pretrial filings which would have included producing her updated medical records when the trial was pending on April 13, 2026. Thus, Plaintiff has demonstrated she is unwilling to comply with her discovery obligations even when ordered by this Court or when trial is pending in less than a week. Therefore, the Court finds Plaintiff’s violation is willful and less severe sanctions in the Court’s previous order were ineffective. Accordingly, terminating sanctions are appropriate.
10	25-01504866 <i>Martinez vs. Saravia</i>	Motion to Strike To the extent that the motion of defendants Edith Martinez and Sandra Rojas to strike the punitive damages request in the complaint of Edith Martinez and Sandra Rojas is not MOOT, it is DENIED for failure to comply with CRC 3.1322(a). <u>Discussion.</u> Per the notice of motion, defendants Braulio Saravia and Maria L. Saravia “move the Court to strike the punitive damages request in the Complaint filed by Plaintiffs EDITH MARTINEZ and SANDRA ROJAS.”